

****April 22, 2024****

****A New Sanction for Non-Compliance with GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in April 2024, an investigation into the operator S.C. Tensa Art Design S.A., holder of the website www.lensa.ro, and found a violation of the provisions of Article 6 of Regulation (EU) 2016/679 (GDPR), in relation to Article 85 paragraph (5) letter a) of the same regulation. As such, the operator was sanctioned with a fine of 9,941 lei, equivalent to 2,000 EURO.

The investigation was initiated following a complaint from an individual who notified the National Supervisory Authority regarding the fact that the operator S.C. Tensa Art Design S.A., holder of the website www.lensa.ro, processed his phone number for direct marketing purposes without his consent, sending him commercial SMS messages through which the individual was informed about the company's offers.

During the investigation, it was found that the operator S.C. Tensa Art Design S.A. did not provide evidence of the existence of the individual's consent or any other legal basis for processing his personal data for direct marketing purposes, thus violating the provisions of Article 6 of the GDPR, in relation to Article 83 paragraph (5) letter a) of Regulation (EU) 2016/679.

Additionally, based on Article 58 paragraph (2) letter d) of the GDPR, the following corrective measure was ordered against Tensa Art Design S.A.: to take the necessary measures to ensure that, in the future, the processing operations comply with the provisions of the GDPR, specifically to avoid processing personal data without the consent of the data subjects and without the existence of another legal basis for processing the data of the data subjects for marketing purposes, in relation to the provisions of Article 6 of the GDPR.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****